

Rajendra Singh Yadav v. S.K. Sharma, Executive Engineer, Power Distribution Division

Allahabad High Court · Single Judge · 3 August 2016 · Contempt Application (Civil) No. 955 of 2016 · **Contempt dismissed; notice discharged after the Clause 6.5(b) representation was decided**

HEADNOTE

Where a writ court has directed that if the consumer avails Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 an appropriate decision shall be taken expeditiously, and civil contempt is later brought for alleged wilful disobedience of that writ and of a prior contempt order, the High Court, on a compliance affidavit showing that the consumer's representation was disposed of, holds the writ order complied with in letter and spirit, finds that nothing survives, and dismisses the contempt with notice discharged. The Court does not examine the merits of the Clause 6.5(b) decision.

FACTUAL SUMMARY

Rajendra Singh Yadav moved this civil contempt against S.K. Sharma, Executive Engineer, Power Distribution Division, alleging wilful disobedience of the 14 December 2015 order in Writ-C No. 66159 of 2015 and of the 14 January 2016 order in Contempt Application (Civil) No. 176 of 2016. The writ court had directed that if he availed the remedy under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005, an appropriate decision would be taken expeditiously.

After a prima facie notice, a finding of improper service on a clerk at a locked office, aailable warrant, and personal appearance of the opposite party, a compliance affidavit stated that the applicant's representation had been disposed of under the opposite party's signatures on 21 July 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

contempt of a writ direction to decide a Clause 6.5(b) representation

HOLDING

Where a writ court has directed that if the applicant avails Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 an appropriate decision shall be taken expeditiously, and the consumer later alleges wilful disobedience of that writ and of a prior contempt order, the High Court, on a compliance affidavit stating that the representation was disposed of under the opposite party's signatures, will hold the writ order complied with in letter and spirit, find that nothing survives, dismiss the contempt, and discharge notice. It does not redecide the bill or the representation. ¶ [order of 3.8.2016](#)

QUALIFIER

Final sitting 3.8.2016 after listings of 23.2.2016, 19.5.2016, 5.7.2016 and 26.7.2016.

FLAG Thin civil-contempt record. Source PDF concatenates five unnumbered sittings: 23.2.2016 (Sunita Agarwal, J.) issuing notice on a prima facie wilful-violation case; 19.5.2016 (Manoj Misra, J.) holding service on a clerk at a locked office improper and issuing fresh notice; 5.7.2016 (Pankaj Naqvi, J.) issuing aailable warrant after service and non-appearance; 26.7.2016 (Pankaj Naqvi, J.) noting the opposite party's presence and directing service of a ready compliance affidavit; 3.8.2016 (Pankaj Naqvi, J.) dismissing the contempt on the 21.7.2016 disposal of the representation. Coram is the 3.8.2016 disposing judge. The 3.8.2016 order recites perusal of 'the Contempt Court dated 21.7.2015 on his representation'; the compliance affidavit dates that disposal 21.7.2016 — recorded as stated. Catalog hits UP-2005::3.8, UP-2005::5.7, UP-2005::5.7(g), UP-2005::6.5(b)(ii), disputed-assessment-relegated-to-6.5(b)(ii) and no-meter-billing-on-three-months-average-clause-5.7 are not used; this order recites only Clause 6.5(b) as the writ direction and decides only compliance. No precedent cited.

contempt-satisfied-once-directed-representation-is-decided

Civil contempt of a 14.12.2015 writ direction that a Clause 6.5(b) representation be decided expeditiously, and of a 14.1.2016 contempt order, was dismissed once a compliance affidavit showed that representation disposed of on 21.7.2016; the Court held the writ complied with in letter and spirit and discharged notice. ¶ [order of 3.8.2016](#)

contempt-of-6.5-writ-does-not-redecide-bill

The contempt court found the Clause 6.5(b) writ direction complied with by the 21.7.2016 disposal of the representation and did not examine the merits or quantum of that decision.

¶ [order of 3.8.2016](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTY HAD WILFULLY DISOBEYED THE 14.12.2015 WRIT ORDER OR THE 14.1.2016 CONTEMPT ORDER

The 23.2.2016 sitting recorded a prima facie case of wilful violation and issued notice; the 3.8.2016 order dismissed the contempt on compliance without a finding of contempt. ¶ [order of 23.2.2016](#), [order of 3.8.2016](#)

NOT DECIDED — MERITS OR QUANTUM OF THE APPLICANT'S CLAUSE 6.5(B) REPRESENTATION AND OF THE 21.7.2016 DISPOSAL

The Court held only that the writ direction to decide had been complied with; it did not redecide the bill.

¶ [order of 3.8.2016](#)